

		This interrogatory seeks information regarding the dates that Jane received online advertisements. Jane stated in response: “Plaintiff does not currently recall the exact dates she received any advertisements following her use of https://www.dentistsofclercerritoplaza.com/. Plaintiff expressly reserves the right to supplement or amend this response as new information is learned.” The court finds that this response is adequate, and Defendants have provided no evidence that Jane is withholding any information regarding targeted online advertisements. No further response from Jane is required. Defendants are ordered to give notice of this ruling to Plaintiffs.
13	30-2025-01537543 Tapia Cruz vs. Aero Power Services, a California corporation	Defendant Aero Power Services’ (“Defendant”) Motion to Compel Arbitration of Plaintiff Alejandra Tapia Cruz’s (“Plaintiff”) Individual Claims and for Dismissal of Class Claims is GRANTED. IT IS ORDERED THAT Plaintiff’s individual claims in this action are compelled to arbitration pursuant to the parties’ arbitration agreement, Plaintiff’s class claims are dismissed, and this action is STAYED pending completion of arbitration. The court sets an ADR status conference for February 18, 2027 at 9:00 a.m. The court SUSTAINS Defendant’s objections to Plaintiff’s counsel, Gabriella Sole’s declaration regarding Plaintiff’s language skills as counsel’s statements lack foundation. The court concludes that there exists a valid agreement to arbitrate the employment-related claims asserted by Plaintiff and that no grounds exist to bar enforcement of the agreement. (CCP § 1281.2.) The parties do not dispute the existence of the September 1, 2023 arbitration agreement signed by Plaintiff when she began her employment with Defendant. (Phuong Dec. ¶¶ 4-5, Ex. A.) The court finds that the Federal Arbitration Act (“FAA”) governs the subject arbitration agreement. “The United States Supreme Court has identified “three categories of activity that Congress may regulate under its commerce power: (1) ‘the use of the channels of interstate commerce’; (2) ‘the instrumentalities of interstate commerce, or persons or things in interstate commerce, ...’; and (3) ‘those activities having a substantial relation to interstate commerce, ... i.e., those

		activities that substantially affect interstate commerce.” (<i>Evenskaas v. California Transit, Inc.</i> (2022) 81 Cal. App. 5th 285, 293.) “[T]he FAA encompasses a wider range of transactions than those actually ‘in commerce’—that is, ‘within the flow of interstate commerce[.]’” (<i>Id.</i>) “Consistent with Congress’s power to regulate an entire class of activity, FAA preemption does not require that an agreement has a specific effect on interstate commerce.” (<i>Id.</i>) “The FAA applies even ‘in individual cases without showing any specific effect upon interstate commerce’ if in the aggregate the economic activity in question would represent ‘a general practice ... subject to federal control[.]’” (<i>Id.</i> at 294.) Defendant’s office manager, Paul Phuong states: “Defendant fabricates and assembles airplane parts and components. Defendant’s clients are other airplane part fabrication companies. The parts and components Defendant fabricates or assembles are then passed onto Defendant’s customers, who then adds other parts to those components. These parts and components eventually are installed onto airplanes, which could ultimately be flown nationally or internationally. The parts and components Defendant fabricates are shipped to other airplane part manufacturing companies all over California.” (Phuong Dec. ¶ 3.) The court finds that these facts demonstrate that Defendant’s business activities substantially affect interstate commerce, and therefore the FAA applies to the subject arbitration agreement. As the FAA applies, Plaintiff’s arguments as to unenforceability of the agreement pursuant to California Labor Code sections 229 and 432.6 are without merit as these statutes are preempted by the FAA. (<i>Perry v. Thomas</i> (1987) 482 U.S. 483, 491 [“[U]nder the Supremacy Clause, the state statute [Cal. Lab. Code § 229] must give way [to the FAA].”; Cal. Lab. Code § 432.6(f) [“Nothing in this section is intended to invalidate a written arbitration agreement that is otherwise enforceable under the Federal Arbitration Act.”].) The court also finds that the arbitration agreement is enforceable. Plaintiff has failed to meet her burden of proving the facts of any defense to enforceability. (<i>Chin v. Advanced Fresh Concepts Franchise Corp.</i> (2011) 194 Cal. App. 4th 704, 708.) “[U]nconscionability has both a ‘procedural’ and a ‘substantive’ element, the former focusing on ‘oppression’ or ‘surprise’ due to unequal bargaining power, the latter on ‘overly harsh’ or ‘one-sided’ results.” (<i>Armendariz v. Found.</i>
--	--	--

		<i>Health Psychcare Servs., Inc.</i> (2000) 24 Cal. 4th 83, 114.) “The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.” (<i>Id.</i>) “But they need not be present in the same degree.” (<i>Id.</i>) “Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves.” (<i>Id.</i>) “In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (<i>Id.</i>) As the subject arbitration agreement was a form contract and was imposed as a condition of employment, there is some level of procedural unconscionability attached to the subject agreement. However, Plaintiff fails to establish substantive unconscionability as the objectionable terms are either inapplicable, not unconscionable, or may be severed. Plaintiff contends that the purported agreement improperly places a shortened statute of limitations for non-statutory claims. However, the language of the agreement only requires arbitration within one year “if no statutory limitation is applicable.” (Phuong Dec., Ex. A.) Thus, this provision does not demonstrate any substantive unconscionability. Plaintiff also contends that the agreement is overly broad as to scope, as it requires that “Employee waives all rights to sue any clients of the Employer.” (<i>See, e.g., Cook v. Univ. of S. California</i> (2024) 102 Cal. App. 5th 312, 325 [“It is difficult to see how it is justified to expect Cook—as a condition of her employment at the university—to give up the right to ever sue a USC employee in court for defamatory statements or other claims that are completely unrelated to Cook’s employment. . . [T]he agreement’s broad scope is substantively unconscionable.”].) However, this term may be severed. (Cal. Civ. Code § 1670.5 [“If the court as a matter of law finds the contract or any clause of the contract to have been unconscionable at the time it was made the court may . . . enforce the remainder of the contract without the
--	--	--

		unconscionable clause . . .”].) Plaintiff argues that the agreement violates the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (“EFAA”) because the arbitration agreement requires arbitration of “claims of employment discrimination and harassment under Title VII of the Civil Rights Act.” The EFAA states that “no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.” (9 U.S.C.A. § 402(a).) However, there is no such sexual assault or sexual harassment claim in this action, and Plaintiff fails to cite to any cases finding an arbitration agreement using similar broad language regarding Title VII claims unconscionable due to the EFAA. Accordingly, this language does not render the subject agreement unconscionable. Finally, Plaintiff argues that the arbitration agreement contains an illegal jury trial waiver. The agreement states that if the arbitration agreement is determined to be unenforceable, “the parties agree to waive any right they may have to a jury trial with respect to any dispute or claim relating to employment, termination from employment, or any terms and conditions of employment with the Employee.” (Phuong Dec., Ex. A.) The California Supreme Court “has made clear that predispute contractual jury trial waivers are unenforceable under California law.” (<i>Dougherty v. Roseville Heritage Partners</i> (2020) 47 Cal. App. 5th 93, 107.) However, this illegal predispute jury trial waiver may be severed. The court finds that Plaintiff has only demonstrated some level of procedural unconscionability, and any substantively unconscionable terms may be severed. The court finds that the remaining arbitration agreement is enforceable. As to Plaintiff’s class claims, the subject agreement is silent on the issue. Plaintiff argues that class arbitration is permitted because the agreement states: “The arbitrator shall have the power to award any type of legal or equitable relief that would be available in a court of competent jurisdiction.” At best, this language only introduces some ambiguity. The FAA “requires more than ambiguity to ensure that the parties actually agreed to arbitrate on a classwide basis,” as
--	--	---

		under the FAA, arbitration “is a matter of consent, not coercion.” (<i>Lamps Plus, Inc. v. Varela</i> (2019) 587 U.S. 176, 183-184.) There is a fundamental difference “between class arbitration and the individualized form of arbitration envisioned by the FAA.” (<i>Id.</i> at 184.) Class arbitration ““sacrifices the principal advantage of arbitration—its informality—and makes the process slower, more costly, and more likely to generate procedural morass than final judgment.” (<i>Id.</i> at 185.) “Class arbitration not only ‘introduce[s] new risks and costs for both sides,’ . . . it also raises serious due process concerns by adjudicating the rights of absent members of the plaintiff class—again, with only limited judicial review.” (<i>Id.</i>) “[C]ourts may not infer consent to participate in class arbitration absent an affirmative ‘contractual basis for concluding that the party <i>agreed</i> to do so.” (<i>Id.</i>) “Silence is not enough; the ‘FAA requires more.’” (<i>Id.</i>) “[C]lass arbitration, to the extent it is manufactured by [state law] rather than consen[t], is inconsistent with the FAA.” (<i>Id.</i> at 187.) The court finds that the subject arbitration agreement does not authorize class arbitration, and therefore, Plaintiff’s class claims cannot be arbitrated. If “parties did not agree to authorize class arbitration in their arbitration agreement,” a court should enter an “order dismissing class action allegations from the complaint.” (<i>Kinecta Alternative Fin. Sols., Inc. v. Superior Ct.</i> (2012) 205 Cal. App. 4th 506, 510–11.) Thus, the court DISMISSES Plaintiff’s class claims. Both the Federal Arbitration Act and California law provide for a stay of proceedings pending arbitration. (9 U.S.C. §3; CCP §1281.4.) As such, the court stays the action pending completion of arbitration and sets an ADR status conference for February 18, 2027 at 9:00 a.m. Defendant is ordered to give notice of this ruling.
14	30-2026-01555500 Hek vs. La Mirada Post Acute LLC	Plaintiff Humphrey Van Hek’s (“Plaintiff”) Motion to Compel Deposition of the Person Most Knowledgeable (“PMK”) of Defendant La Mirada Post Acute, LLC (“Defendant”) and for Production of Documents is GRANTED IN PART AND DENIED IN PART. Plaintiff seeks an order compelling the deposition of the Person Most Knowledgeable (“PMK”) of Defendant and the